

Court notes that the parties are actively litigating in Family Court, and Plaintiff is represented there by other counsel.

10. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC

FILED BY: ASSIGNMENT AMERICA, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

11. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC
JOHN MUIR HEALTHS STATEMENT OF NON-OPPOSITION & JOINDER RE DEF ASSIGNMENT
AMERICA, LLCs MOTION TO COMPEL ARBITRATION
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C26-00608
CASE NAME: JESSICA PHILAVONG VS. LUIS GUZMAN
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: GUZMAN, LUIS

TENTATIVE RULING:

The Motion to Strike Portions of the Complaint filed by Plaintiffs Jessica Philavong and Kelly Philavong, brought by Defendants Guzman Property LLC and Luis Guzman, is **denied**.

Plaintiffs shall prepare the order and serve notice of entry. Defendants shall have 10 days from service of written notice of entry of the order to answer the complaint.

Background

This is a landlord-tenant habitability case arising from Plaintiffs Jessica Philavong and Kelly Philavong's tenancy at 758 S 40th Street in Richmond (the Property). (See Plfs.' 8/13/26 Complaint, ¶¶ 1, 9.) Defendants are Guzman Property LLC and Luis Guzman who allegedly owned, managed, and controlled the Property. (*Id.*, ¶¶ 2-4, 10,)

Plaintiffs entered into a written lease for the Property on March 17, 2017, for \$1,580.00 per month. (Compl., ¶ 9). Plaintiffs allege that Defendants failed to maintain the property and allowed substantial, longstanding habitability defects to exist, including a broken stove and refrigerator, broken heater, insufficient trash receptacles, water leaks and intrusions, lack of separate utility meters, and general dilapidation. (*Id.*, ¶¶ 11-12, 14, 58.) Despite verbal and written repair requests, and an August 19, 2024 Notice of Violation and/or Notice to Abate issued by City of Richmond Code Enforcement, Defendants failed and refused to remediate the conditions, and instead continued to

collect rent and issued a notice of rent increase. (*Id.*, ¶¶ 15-16.)

Plaintiffs also allege Defendants engaged in a pattern of harassment, intimidation, and retaliation by shutting off utilities to their unit, using derogatory language toward them, invading their privacy by photographing the interior of the apartment (including the children's bedroom), allowing third parties to use their utilities and laundry facilities, forcing them to pay utility costs for all three units. (Compl., ¶¶ 16-18, 113-117.)

Plaintiffs assert the following causes of action against Defendants based on these facts: (1) tortious breach of the implied warranty of habitability, (2) contractual breach of the implied warranty of habitability, (3) breach of contract, (4) breach of quiet enjoyment, (5) private nuisance, (6) premises liability, (7) negligence, (8) violation of California Civil Code Section 1942.4, (9) violation of the Richmond Just Cause for Eviction Ordinance, (10) violation of the Richmond Rent Control Ordinance, (11) violation of the Richmond Tenant Anti-Harassment Ordinance, (12) violation of the UCL, and (13) retaliation. Plaintiffs assert a claim for punitive damages, and treble damages under the Richmond Municipal and Civil Codes.

According to the Notice of Motion, Defendants move to strike punitive damages, treble damages, and certain factual allegations of intentional conduct, harassment, intimidation, and retaliation. The Notice also states (at page 3, lines 25-26) that a "concurrently filed demurrer" has been submitted. However, no demurrer appears in the Register of Actions.

Defendants' opening memorandum of points and authorities addresses only the general sufficiency of the punitive damages allegations under Civil Code section 3294. The opening memorandum does not analyze the prayers for treble damages, the specific factual allegations of harassment and retaliation, or corporate liability under Civil Code section 3294(b). Because Defendants failed to brief these issues in their opening papers and raised them for the first time on reply, the Court does not consider them.

Legal Standard

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CCP §436.) Pursuant to CCP §436, the Court may strike out "any irrelevant, false, or improper matter inserted in any pleading" and/or "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CCP §436.) In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Sup.Ct.* (Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255.)

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (CC §3294(a).)

"'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or

despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (CC §3294(c)(1).) "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (CC §3294(c)(2).)

"An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (CC §3294(b).)

Meet and Confer

Before filing a motion to strike, the moving party shall meet and confer in person or by telephone with the party who has filed the pleading subject to the motion to strike and file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5(a).) However, an insufficient meet and confer process is not grounds to grant or deny a motion to strike. (*Id.* § 435.5(a)(4).)

Defendants complied with the meet and confer requirements. (See Declaration of Branden D. Frankel ¶¶ 2-4 and Exh. A.)

Merits

Defendants move to strike punitive damages allegations on the basis that Plaintiffs failed to allege facts amounting to malice or oppression. The Court disagrees.

In a landlord-tenant action, a claim for punitive damages was properly stated where there were "long existing physical conditions of the premises which portend danger for the tenants...[and] respondents knew of those conditions..., had the power to make changes, but failed to take corrective and curative measures." (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.) Here, as described more fully above, Plaintiffs alleged the existence of numerous and longstanding defects that the Defendants were aware of and failed to remedy, including a broken stove, refrigerator, heater, water leaks/intrusions, and insufficient trash receptacles. Plaintiffs allege Defendants failed and refused to complete requested repairs and were cited by code enforcement.

In addition, Plaintiffs allege Defendants' intentional retaliation for assertion of their tenant rights, including for demanding repairs and/or making reports to code enforcement based on the defective conditions at the Property, including by, *inter alia*, serving notices of rent increase and eviction, shutting off utilities, and using derogatory language when speaking to and about Plaintiffs. Such facts regarding the alleged retaliation, if proven at trial could sustain a finding of malice. (E.g., *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6-7 [allegation of retaliation "describe[d] defendants' motive for shutting off petitioner's home phone service-a motive which, if proven, would sustain a finding of malice."].)

Defendants argue on reply that "the opposition ignores the chronology of the pleadings facts" in that the March 30, 2023, notice of termination could not be retaliatory because the City Code

Enforcement inspection did not occur until August 19, 2024. (Reply, pp. 6–7.) However, there is no timing defect because the 2023 notice is alleged to have been served in retaliation for habitability complaints and lawful rent withholding (Compl. ¶ 116), which are protected activities independent of any report to code enforcement. Defendants further argue the utility shut-off alleged happened at an "unstated time," the notice terminating tenancy was "never acted upon," and the alleged lack of separate utility meters is merely a "billing arrangement" rather than an unlawful rent increase or despicable conduct. These latter arguments impermissibly rely on matters outside of the pleadings.

Whether Plaintiffs will be able to prove entitlement to punitive damages by clear and convincing evidence remains to be seen. However, the Court finds the allegations of the complaint sufficient to show their entitlement to punitive damages at this stage.

As noted above, Defendants failed to brief their challenges to the treble damages prayers and factual allegations in their opening motion and raised new statutory and corporate liability arguments for the first time in their reply. The Court declines to consider unbriefed issues or arguments raised for the first time on reply.

Disposition

Based on the foregoing, the motion to strike is **denied**.

13. 9:00 AM CASE NUMBER: N26-0541
CASE NAME: CARMEN SAMIERE VS. MATEO MAYNE
PETITION TO CORRECT OR VACATE ARBITRATION AWARD
FILED BY: SAMIERE, CARMEN MARIE
TENTATIVE RULING:

This matter is not on calendar. The matter was decided.